

		The court VACATES the Case Management Conference scheduled for 8/17/26. Defendant to give notice.
12	Villalobos vs. Elizarraraz	<u>Demurrer</u> The court SUSTAINS Defendant ELIZABETH LARA's (erroneously sued as JUANA ELIZABETH JIMENEZ ELIZARRARAZ) unopposed entire demurrer to the Complaint, with 30 days leave to amend. The 2-page Complaint merely lists five purported causes of action without alleging a factual basis for each. (See Compl., p. 1, line 28 to p. 2, line 7.) Such is insufficient to survive the demurrer. <i>Upcoming Motion to Strike: OFF-CALENDAR</i> The court takes the scheduled 8/7/26 hearing on Defendant's motion to strike OFF-CALENDAR. (ROA 21.) The motion to strike is MOOT in light of the court's ruling on the demurrer. Moreover, while the motion to strike was filed on the same day that the demurrer was filed, it was not set for the same hearing date. The motion to strike is currently set for hearing on 8/7/26. When a demurrer is also filed, a motion to strike "must be noticed for hearing and heard at the same time as the demurrer." (Rules of Court, rule 3.1322(b).) As explained in the Rutter Guide, "Where there are grounds both for demurring and moving to strike, the two documents must be filed together and noticed for the same hearing." (Cal. Prac. Guide Civ. Pro. Before Trial ¶ 7:162, citing Code Civ. Proc., § 435(b)(3), Rules of Court, rule 3.1322(b).) As such, the court takes the motion to strike set for 8/7/26 OFF-CALENDAR.